DEFINITION OF A CITIZEN

How the Indian Constitution determines citizenship

When the Constitution was promulgated *(Jan. 26, 1950)*

Any person domiciled in India was a citizen if

- He was born in India or had a parent born in India
- Resident in India for at least 5 years prior

Migrants from Pakistan

- Those who came before Jul. 19, 1948, became citizens if resident in India since migration
- Those who came after had to register as citizens
- Persons migrating to Pakistan after Mar. 1, 1947, were not citizens unless they returned with a resettlement permit

Persons of Indian origin residing abroad

- Could be registered as citizens by Indian diplomatic authorities. But no dual citizenship allowed



PUBLIC OUTCRY Students protest against CAA-NRC at India Gate, New Delhi

CHANDRADEEP KUMAR

Overseas Citizenship of India (OCI)

- OCI is not full citizenship but provides long-term visa and residency rights (Sec. 7A of the Citizenship Act, 1955)
- Does not grant political rights like voting, contesting elections or holding constitutional posts

Loss of Citizenship

- Renunciation (Sec. 8): Voluntary
- Termination (Sec. 9): Automatic if one acquires foreign citizenship
- Deprivation (Sec. 10): If obtained by fraud, disloyalty, unlawful trade with enemy, or on imprisonment abroad

Under the Citizenship Act, 1955

Citizenship can be acquired in the following ways...

By birth (Sec. 3)

- Born in India between Jan. 26, 1950 and Jul. 1, 1987
- Born between Jul. 1, 1987 and Dec. 3, 2004: citizen if either parent was Indian citizen (added through Citizenship Amendment Act, or CAA, 1986)
- Born on/after Dec. 3, 2004: citizen only if both parents are Indians, or one parent is Indian and the other is not an illegal migrant (CAA 2003)

By descent (Sec. 4)

- Born outside India between Jan. 26, 1950 and Dec. 10, 1992: citizen if father is Indian citizen
- Born after Dec. 10, 1992: citizen if either parent is Indian citizen (CAA 1992)
- Registration of birth at Indian consulate within one year required; child must not hold foreign passport (CAA 2003)

By registration (Sec. 5)

- Person of Indian Origin (PIO) living in India for 7 yrs
- PIO residing abroad
- Spouse of Indian citizen, ordinarily resident in India for 7 years
- Minor children of Indian citizens
- Other categories like persons who were earlier Indian citizens or Overseas Citizenship of India (OCI) cardholders

By naturalisation (Sec. 6)

- Foreigners can apply if residing in India for 12 yrs
- Relaxed to 5 years for Hindus, Sikhs, Buddhists, Jains, Parsis, Christians from Afghanistan, Bangladesh or Pakistan (through CAA 2019)

By incorporation of Territory (Sec. 7)

- If a new territory becomes part of India, the govt specifies who can become an Indian citizen

Special Provisions

- Assam Accord: PIO who entered Assam before Jan. 1, 1966, deemed citizens. Those entering between 1966–71 registered but no voting rights for 10 years
- CAA 2019: Hindus, Sikhs, Buddhists, Jains, Parsis, Christians from Afghanistan, Bangladesh, Pakistan who entered before Dec. 31, 2024 (without valid documents) can get citizenship